RESOLUTION MSC.135(76)
(adopted on 12 December 2002)
ADOPTION OF AMENDMENTS TO THE INTERNATIONAL CODE
FOR THE SAFE CARRIAGE OF ACKAGED IRRADIATED NUCLEAR FUEL, PLUTONIUM AND HIGH-LEVEL RADIOACTIVE WASTES ON BOARD SHIPS
(INF CODE)

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THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

NOTING resolution MSC.88(71), by which it adopted the International Code for the Safe Carriage of Packaged Irradiated Nuclear Fuel, Plutonium and High-Level Radioactive Wastes on Board Ships (hereinafter referred to as “the INF Code”), which has become mandatory under chapter VII of the International Convention fo r the Safety of Life at Sea (SOLAS), 1974, (hereinafter referred to as “the Convention”),

NOTING ALSO article VIII(b) and regulation VII/14.1 of the Convention concerning the procedure for amending the INF Code,

(hereinafter referred to as “the Convention”),

NOTING ALSO article VIII(b) and regulation VII/14.1 of the Convention concerning the procedure for amending the INF Code,

RECOGNIZING the need to amend the INF Code to align it with the amendments to chapter VII of the Convention adopted by resolution MSC.123(75),

HAVING CONSIDERED, at its seventy-sixt h session, amendments to the INF Code proposed and circulated in accordance with article VIII(b)(i) of the Convention,

1. ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the INF Code, the text of which is set out in the Annex to the present resolution;

2. DETERMINES, in accordance with article VII I(b)(vi)(2)(bb) of the Convention, that the amendments shall be deemed to have been accepted on 1 January 2004 unless, prior to that date, more than one third of the Contracting Go vernments to the Convention or Contracting Governments the combined merchant fleets of wh ich constitute not less than 50% of the gross tonnage of the world’s merchant fleet, have notified their objections to the amendments;

Governments the combined merchant fleets of wh ich constitute not less than 50% of the gross tonnage of the world’s merchant fleet, have notified their objections to the amendments;

3. INVITES Contracting Governments to note that , in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 July 2004 upon their acceptance in accordance with paragraph 2 above;

4. REQUESTS the Secretary-General, in c onformity with article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the Annex to all Contracting Governments to the Convention;

5. FURTHER REQUESTS the Secret ary-General to transmit copies of this resolution and its Annex to Members of the Organization, wh ich are not Contracting Governments to the Convention.

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ANNEX

AMENDMENTS TO THE INTERNATIONAL CODE FOR THE SAFE CARRIAGE OF

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ANNEX

AMENDMENTS TO THE INTERNATIONAL CODE FOR THE SAFE CARRIAGE OF PACKAGED IRRADIATED NUCLEAR FUEL, PLUTONIUM AND HIGH-LEVEL RADIOACTIVE WASTES ON BOARD SHIPS, AS AMENDED

Chapter 1 – General

1.1 Definitions

1 Existing subparagraph .3 of paragraph 1.1.1 is replaced by the following:

".3 INF cargo means packaged irradiated nucle ar fuel, plutonium and high-level radioactive wastes carried as cargo in accordance with class 7 of the IMDG Code."

2 In paragraph 1.1.1.7, the reference “VII/14.6” is replaced by the reference “VII/1.1”.

1.2 Application

3 In paragraph 1.2.2, the word “should” is replaced by the word “shall”.

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